

## 22STCP02989 22STCP02989

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-06

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Case Number: 22STCP02989 Hearing Date: August 6, 2026 Dept: 26

### TENTATIVE RULING:

#### Plaintiff

Maricopa Meadows Homeowners Association's Motion

for Award of Attorney Fees and Costs is granted

in the amount of \$1,410.00 in attorney fees and \$95.55 in costs.

#### Analysis:

On August 9, 2022, this Court entered as judgment a sister-state judgment from the County of Maricopa, State of Arizona in favor of Plaintiff / Judgment Creditor Maricopa Meadows Homeowners Association ("Judgment Creditor") and against Defendants / Judgment Debtors Stephen S. Brown and Jane Doe Brown ("Judgment Debtors"). Judgment Creditor filed a Motion for Award of Attorney's Fees and Costs, which the Court granted May 16, 2024. (Minute Order, 05/16/24.)

Judgment Creditor filed the instant Motion for Award of Attorney's Fees and Costs on June 25, 2026. The Motion is brought pursuant to Code of Civil Procedure section 685.080. Judgment Creditor served the Motion upon Judgment Debtors by first-class mail on the same day. No opposition has been filed to date.

#### Discussion

#### Request for Judicial Notice

The motion is accompanied by a

request for judicial notice of (1) portions of the Master Declaration of Covenants, Conditions and Restrictions for Maricopa Meadows recorded in the Pinal County, Arizona Recorder's Office on March 19, 2004 as Instrument No. 2004-019765; (2) the judgment

entered in the Maricopa Justice Court, County of Pinal, State of Arizona on November 6, 2013, entitled Maricopa Meadows Homeowners Association v. Stephen S. Brown and Jane Doe Brown with case number CV2012-0564; and (3) the judgment on Sister-State Judgment entered in the above-entitled action, in the Los Angeles County Superior Court, case number 22STCP02982.

The request for judicial notice is granted pursuant to California Evidence Code section 452, subdivisions (c) and (d).

Entitlement  
to Attorney Fees and Costs

"The judgment creditor may claim under this section the following costs of enforcing a judgment: . . . (6) Attorney's fees, if allowed by Section 685.040." (Code Civ. Proc., § 685.070, subd. (a).) Code of Civil Procedure, section 685.040 states: "The judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment. Attorney's fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law. Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5." Also, the motion must be brought with two years of the incurred costs. (Code Civ. Proc., § 685.080, subd. (a).)

Based on the award of attorney's fees in the judgment from the sister-state case, Plaintiff is also entitled to attorney's fees incurred enforcing its judgment here pursuant to Code of Civil Procedure section 685.040. (Motion, RJN, Exh. 2, p. 2.) The Motion is timely filed with respect to fees incurred between August 23, 2024 and the hearing on the instant Motion. (Motion, Bailio Decl., ¶¶6-11 and Exh. A.)

## Calculation of Attorney Fees and Costs

The Court's objective is to award attorney fees at the fair market value based on the particular action. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) "The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate . . . ." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1134.) The lodestar method is based on the factors, as relevant to the particular case: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Id. at 1132.) "The "experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.'" (Id.) A negative modifier may be applied when duplicative work has been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)

### Plaintiff

submits the declaration of its attorney, Austin Baillio ("Baillio"), in support of its request for attorney fees. Baillio declares that he and the other attorney, Garren R. Laymon, billed \$395.00 per hour, with some work charged on a flat fee basis. (Motion, Baillio Decl., ¶6 and Exh. A.) The paralegals billed at \$175.00 per hour. (Id. at ¶9 and Exh. A.) The Court finds the work billed at an hourly rate by the paralegals, and for Baillio's appearance at the hearing on the instant Motion, to be supported and reasonable. The paralegals followed up with a private investigator and searched databases for information about Judgment Debtors' military status, potential bankruptcies, and potential assets. (Ibid.) The two flat rate items were \$500.00 to prepare an affidavit of judgment renewal (presumably in the Maricopa Justice Court) and \$400.00 for drafting the instant Motion. With respect to the affidavit of judgment renewal, the billing statement sets forth the tasks undertaken, which the Court finds support the rate charged. Therefore, Judgment Creditor is

awarded attorney's fees of \$1,410.00.

Regarding

costs incurred, Judgment Creditor seeks \$242.55 for file management software provider charges, the filing fee for the Affidavit of Judgment Renewal, postage, and background investigation. (Motion, Baillio Decl., Exh. A., p. 2.) The only filing fee in the itemized list is for the Affidavit of Judgment Renewal. The Court declines to award costs for file management software provider charges, which the Motion does not discuss. Judgment Creditor is awarded the remaining costs in the amount of \$95.55.

Conclusion

Therefore,

Plaintiff Maricopa Meadows Homeowners Association's Motion for Award of Attorney Fees and Costs is granted in the amount of \$1,410.00 in attorney fees and \$95.55 in costs.

Moving

party to give notice.